
A Discussion On The Law In Relation To The Criminal Responsibility Of The Insane
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SIXTY-SECOND ANNUAL MEETING
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PROCEEDINGS OF SECTIONS.

SECTION OF PSYCHOLOGY.

G. F. BLANDFORD, M.D., President.

A DISCUSSION ON
THE LAW IN RELATION TO THE CRIMINAL
RESPONSIBILITY OF THE INSANE.

I.—By LIONEL A. WEATHERLY, M.D.

THE JUDGES' DICTUM IN 1843.

IN the year 1843 the judges were asked by the House of Lords to give definite answers to certain definite questions concerning the plea of insanity in criminal cases. Their answers have since that day constituted the law of England.

As mental science has advanced, as we have gained in practical experience of the working of the insane mind, and as individual cases have time after time proved that this law is not generally applicable, attempts have been made to have it placed on a more logical and just basis. Books have been written, papers read, discussions started; medical experts have indited long letters to the press, judges have penned articles in magazines, representations have been made from learned societies to the Government; but, so far, without effect. How embarrassing, then, must be my position to-day when, attempting to deal with the perplexities of a question which, however easy it may be to find fault with, is yet most distinctly difficult of solution.

The honour I feel in being permitted to bring this subject before your notice, and the interest I have always taken in it, is, however, an ample recompense, whilst my task is rendered lighter by reason of the fact, that for the first time this question will have the benefit of being discussed, not only by the presumably biased members of our branch of the medical fraternity, but also by gentlemen of a profession which has been often declared, and in high places stated, to be distinctly and hopelessly antagonistic to us on this debatable point. From this opinion, however, I beg most respectfully to differ, and I trust the presence of so many of our legal brethren, and the part we hope they will take in this discussion, will prove that I am not mistaken.

We mental physicians maintain that the existing law is wrong, and that it is not in accord either with our practical experience or with the advance of mental science. You of the legal profession answer us that your duty is simply to act in conformity with the law as it stands; and yet, I fully believe, that you will as heartily welcome a change in the ruling of those judges in 1843 as we shall, being all animated with but one desire—that justice be done to the unfortunate criminal whose mental disease has either directly or indirectly caused his criminality.

Now, what is this law which we so generally condemn? Into its details I need not go; it will suffice to sum it up in this one question: Was the accused at the time of the commission of the act labouring under such a defect of reason or disease of mind as not to know the nature of the act he was doing, or that he was doing that which was wrong? This is the question the judge has to put to the jury; and it is to this question only that medical experts have to give an answer, and prove by facts elicited by them or sworn to by witnesses.

No one can complain that this law is not definite enough. It is its very want of latitude that brings it under condemnation; and though it may seem paradoxical to say so, it is this too defined ruling which has almost made the sentencing to death of a lunatic depend upon chance.

ITS APPLICATION IN INDIVIDUAL CASES.

How many of you present this day can deny that if you have been interested in the case of a criminal, for whose defence the plea of insanity is to be raised, your grave anxiety has been to find out before which judge your unfortunate client will have to be tried. For whereas one judge will place this law before the jury in all its strict and definite reading, leaving the defence no chance of proving the prisoner's true mental condition, another, taking a more common-sense view and apparently forgetful of the answers those judges gave in 1843, will sum up in a manner which gives the jury no alternative but to bring in the humane and just verdict of "Guilty, but insane."

Yet, again, how often may it happen, that as Lord Blackburn so truly said, "in spite of what the judge may tell the jury of the law, in spite of his giving them no loophole by which they might give the prisoner the benefit of the doubt as to his sanity, they take the bit between their teeth, and, defying guidance, prove by their verdict that at least in their opinion the prisoner at the bar is not responsible for the crime for which he stands indicted." This is what happened in the case of the Queen *v.* Hitchens, tried at the Taunton Assizes on November 22nd, 1887, before the then Mr. Justice Field. No case could more clearly prove how utterly the present law is at variance with scientific knowledge. No trial that I am aware of so plainly demonstrated the wisdom of Maudsley's remark: "The judges may well consider whether their own dignity, and what they feel to be of more importance than that, the authority of the law which they administer, will not suffer in public esteem if they do not get rid of false dicta and bring legal doctrine into accord with observation and common sense."

No one who was present at this trial could easily forget it. There in the criminal dock stood, or rather crouched, a pitiable object. His attitude, his facial expression, his semi-idiotic stare, all proved his mental deficiency. The trial proceeded. It was evident that the plea of insanity was the only defence. The prisoner's counsel disputed none of the facts which the prosecution disclosed. The prisoner had undoubtedly shot his sister while she lay in bed. The tragedy had been premeditated, as the letter he wrote so clearly proved: "I leave everything that belongs to my dear mother. I have been treated so badly by that beast, my sister Constance, that I feel I must put an end to her life by shooting, and knowing that I shall have to die for it, I also shoot myself. Goodbye to all, hoping you will have a happy time of it. Goodbye, dear father and mother."

And his motives. His poor sister had passed him in the street without taking notice of him; she had forgotten to hand him the Bristol paper across the breakfast table! Near the judge sat a number of medical experts, all ready to go into the witness-box and give evidence—of what? Not of his want of knowledge of the difference between right and wrong. Not of his want of appreciation of the punishment which would follow his criminal act—for how could they attempt such a task in the face of that letter? Their evidence would have been that he was a hopeless epileptic imbecile, and could not possibly in the light of mental science and common sense be held responsible for the gruesome deed.

One of the medical witnesses was a doctor who now holds the post of Lunacy Commissioner, and he had been sent down by the Treasury to examine the wretched prisoner; but the prosecution had in the meantime found out that his evidence was for, not against, the plea of insanity, and they did not call him. And this took place in the nineteenth century, and in a court of justice of this enlightened England of ours! The defence put him in the witness-box. The counsel for the prisoner attempted to examine him, but the moment the judge heard the word "opinion" he stopped that witness's mouth, saying "he would have no opinions in his court." It was pointed out that here was a Crown witness specially retained as a skilled person, and that he could not give facts without drawing the necessary skilled deductions from them—to no purpose. And he left the box, and he has since placed it on record that, as he walked down those steps, he felt very much as if he had been helping in one of the uproarious and indecent exhibitions which are said to have occurred in Judge Jeffreys's Courts.

Those of the other medical men who were called to give

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evidence were treated in the same way: the counsel for the defence and prosecution duly made their speeches to the jury. The summing-up commenced. The law, and nothing but the law, of the judges in 1843 was laid down in the most definite and impressive manner, and at the end of the determined and powerful oration, sounding "wondrously" like the speech of a prosecuting counsel rather than a calm judicial review of the facts of the case, the jury were left to consider their verdict. Thanks be to the common sense of those Somerset men, it did not take them long. "Guilty, but insane," said they.

In angry tones were they dismissed from further duty, and the wretched prisoner left the dock—not to be taken to the prison from whence he came, and there to be hanged by the neck till he was dead—but *en route* for the gates of the more merciful Broadmoor.

RECENT JUDICIAL OPINIONS.

Now let us glance at the case of William Burt, tried before the late Mr. Justice Stephen at the Norwich Assizes, in 1885, on a charge of causing grievous bodily harm. The prisoner was jealous, he was a passionate man, he was an epileptic. The judge told the jury the law, but went on to charge them: that in the case there seemed to be a mixture of motive; and that if a man acted, partly from a common motive and partly from disease, he would suggest it was for a humane jury to give the man the benefit of the doubt, and take into consideration whether they would not have him taken care of instead of subjecting him to punishment. "If there was epileptic fury and insanity mixing with ordinary resentment and causeless jealousy, and a man acted from both motives," his lordship thought, "the general spirit of the law and its administration suggested that the prisoner should have the benefit of any doubt which arose."

Mr. Justice Cave, Mr. Justice Hawkins, and the late Lord Chief Justice Coleridge have all, at certain trials in which the plea of insanity has been raised, denounced the ruling of 1843 as wanting in applicability to individual cases. In 1883, at the Worcester Assizes, the late Lord Chief Justice made use of strong words—words which should indeed carry weight and help forward the alteration we are striving for. "There was," he said, "no more painful part of the duty of those who had to administer the law than the matter of insanity. The law which existed upon the subject, and which he was going to lay down to them as law, was not incapable of being so interpreted as to do terrible injustice," and his lordship went on to quote a case, in his own experience, in which a murderer was unquestionably mad, but was hanged. "God forbid that he should say justly, but certainly according to law, and that law was, as far as he knew, still the law of England."

Take these cases, note these opinions of some of the judges, and then ask whether Maudsley was not justified when in 1876 he wrote: "Nevertheless, juries often, and judges occasionally, out of a natural humanity repudiate this dogma (the knowledge of wrong) in particular cases; and so far from any certainty of result having been secured by its application, it is notorious that the acquittal or conviction of a prisoner where insanity is alleged, is rather a matter of chance; were the issue to be decided by tossing up a shilling, instead of by the grave procedure of a trial in court, it could hardly be more uncertain." These are strong words, but I feel candidly that they are not exaggerations, and I take it, this uncertainty of justice is the most potent reason we have on our side for demanding a reconsideration of the law in these cases.

MEDICAL EXPERIENCE IN ASYLUMS.

Out of the mouths then of some of the highest administrators of the law has this "knowledge of right and wrong test" been condemned. Does it then require that we in our branch of medicine should still further prove its condemnation by logical deductions from our practical experience with mental disease?

Yet if it be thought needful, let us ask any of you who may doubt these arguments to walk through the wards of any large asylum, and, excluding the idiots, the low-class imbeciles, and a few of the chronic demented, speak with all the inmates, and one can with confidence assert that you will find comparatively few of whom it can be truthfully said that they have no proper knowledge of right and wrong. We

can show you cases of general weakening and deficiency of the intellectual powers, of the will and of the control of emotion, and yet the capability of knowing right from wrong still exists. We can ask you to examine a patient whose mind is full of delusion, hallucinations, and illusions of one or all the senses, and yet defy you to prove the absence of this specific knowledge. We can point out to you patients who are at times the subjects of transitory fury, and of whom, if we were put on our oath, we could not affirm that they did not know that they were acting contrary to the law of the land. We can take you to one man who reasons insanely on sane premisses, to another whose sane reasoning is built up on insane foundations, and yet to another who bases his insane reasoning on insane grounds, and yet all will have that knowledge which makes them in the eyes of the law responsible beings. Any one of these people may commit a crime by reason of their mental disease and may well know at the time that such act is wrong and against the law of the land. Should we hold them responsible for their insane condition? Certainly not. Why, then, should the law consider them responsible for a crime which can be proved to be directly the outcome of their brain affection?

MEDICAL EXPERT EVIDENCE.

With our daily and hourly experience of such cases we are to be silenced by the dictum of Lord Westbury, "that any ordinary man of the world is as good a judge of insanity as anybody else." We have good reason to quarrel with this opinion, and yet we must all realise that the differences of expert evidence are often sufficiently striking to place us in a rather unsatisfactory light. To the legal mind, to the mind of the general public, it must seem strange to find, as in the recent celebrated trial of the Queen *v.* Monson, evidence by eminent surgeons of so contradictory a nature; and it is not to be wondered at that much of this divergence of opinion was put down to distinct partizanship. If such a thing can happen with regard to the more or less definite science and practice of surgery, how much more likely is it to take place when the more theoretical and undefined questions of mental physiology are the subject of our cross-examination.

I am afraid there will be always a drawback to expert evidence, whether medical or otherwise, from the fact that it is almost against human nature for an expert to remain perfectly unbiassed. He is called for the defence, and he leaves no stone unturned to get at evidence bearing upon that defence; he tries his hardest to find some facts by which to defeat the theory of the prosecution, and *vice versa*; and, on the principle of "two sides to all questions," is perhaps a little too often tempted to say, "but my side for choice."

With regard to our evidence in those cases in which the plea of insanity is raised, we are I think justified in maintaining that the law must be unsatisfactory, which, while limiting our answers in the witness box and thereby securing the conviction of a prisoner, admits our opinion of his mental state, when after sentence of death has been passed representations for a reprieve are made to the Home Secretary, and on these opinions the prisoner is sent to a provincial asylum instead of being given over to the hangman's noose. Yet I cannot myself see how this anomalous position of affairs can be altered while the law remains as laid down by these judges in 1843.

PROPOSALS FOR ALTERATIONS IN THE DICTUM.

I hope that I have given cogent enough reasons why some change is necessary; the difficulty in the pathway of reformation is not then the proof of need, but rather the mode of procedure. Dr. Victor Parant of Toulouse kindly sent me a very able paper which he read at the International Congress of Charities, Correction and Philanthropy at Chicago in 1893, on The Irresponsibility of the Insane under the Laws of France, and I find that Article 64 of the Penal Code reads as follows: "There is no crime or misdemeanour when the accused was in a state of dementia at the time of the commission of the act, or when he was under the control of a force he was not able to resist." By dementia is not meant either the abolition or profound diminution of the intellectual faculties, but rather any mental alienation. For my part I think this ruling of the French law errs on the side of too great latitude, quite as much as our law errs on that of too narrow a limit.

As I stated in the opening of the paper, various suggestions for the betterment of the law have from time to time been made, nearly all of them emanating from the Psychological Association of Great Britain. Most of these suggestions have aimed at the appointment either of a medical assessor of competence, skill, and knowledge, or of a body of medical experts whose joint opinions should be laid before the judge.

In the first place, I do not see if such suggestions were carried out that we should be any nearer a solution of the main difficulty; and, in the second place, I rather fancy such suggestions savour too much of an attempt to abolish trial by jury in these cases—an attempt that I do not for a moment believe would ever be successful.

I would respectfully put forward what, after very careful thought and consideration, seems to me a reasonable and just plan to adopt; and I shall be most interested to find out the feeling of the meeting on this point.

The questions I would rather see placed before the jury and the questions upon which the medical experts should be examined are as follows:

1. Was the accused at the time of the commission of the act with which he is charged, and before that time, labouring under such mental disease as to render him certifiably insane?

2. If insane, how far was the crime the outcome of his insanity?

The last question is to my mind of some importance, for it is quite conceivable, though doubtless more or less rare, that a person of unsound mind may commit a crime in no way caused, or led up to, by his mental condition.

If, then, it be proved to the satisfaction of the jury that the accused was certifiably insane; and, further, that the crime for which he stands charged was the outcome of his mental disease, he should be entitled to their verdict, and be at once placed under care and treatment.

I have tried my best in this short paper to steer clear of the intricate mental details which have so often been the subject of debate when this question has been raised. I have endeavoured to base my conclusions for the necessity of alteration of the existing ruling on broader and more general grounds. My difficulties have been great, my consequent efforts I admit feeble; still, I shall be more than satisfied if, in the discussion which follows, and by the resolutions which will be proposed, and I hope unanimously carried, something is done to place once and for all this present most unsatisfactory, illogical, and unjust ruling on such a sure basis that no longer will uncertainty reign supreme, but in its stead confidence that in all criminal cases in which the plea of insanity is honestly and truthfully raised the prisoner will be looked upon rather as an object of pity, requiring care and treatment, than as a criminal to whom deterrent punishment should be meted out.

II.—CHARLES A. MERCIER, M.B.,

Lecturer on Neurology and Insanity, Westminster Hospital.

HOW THE LAW CAME TO BE AS IT IS.

IN recommending that the law should be altered it is important that we should know precisely what the law is and how it became law. The questions put by the House of Lords to the judges in 1843 were five in number, of which the last was a question purely of procedure. The other four questions referred, not to cases of insanity, but to persons afflicted with insane delusions. To this particular class of insane persons the questions were limited, but the answer of the judges had reference, not to this particular case, but to the general case of a defence "on the ground of insanity." In short, they were asked about one thing and they answered about another.

THE OBJECTIONS TO THE PRESENT LAW.

The reasons why we claim that the law should be reconsidered are four.

First, it does not cover all cases. I do not propose to argue this from the medical point of view. There is abundant evidence in the dicta of high legal authorities that the present law does not excuse persons who are undoubtedly insane. In addition to the authorities cited by Dr. Weatherly,

I may mention Lord Bramwell, who, in giving evidence before a Committee in 1874, said: "The present law lays down such a definition of madness that nobody is hardly ever really mad enough to be within it." Mr. Justice Hawkins, in *Reg. v. Ware* (1885), said: "The law with respect to the responsibility of criminal lunatics appeared to him to be in a very unsatisfactory state.....he did not suppose there was a man living—lawyer or layman—who would say that this unfortunate man, who had caused the death of a fellow creature, was responsible for the act in the eye of the law in any sense, and yet in the face of the evidence they could not say that he did not know the nature of the act, or that he was doing a wrong act.....He was not speaking his own views only in the matter—the judges generally had expressed similar opinions before—that the whole subject should be reconsidered, and that they should have some better definition of what constituted a defence on the ground of insanity."

Mr. Justice Blackburn, in recounting to a Select Committee his experience, said, "The prisoner clearly knew right from wrong, and knew the character of her act, and was quite aware of what she had done, but I felt it impossible to say that she should be punished. I told the jury that there were exceptional cases." The difficulty is that, if I may use an Hibernicism, the exceptional cases are the rule.

The second objection to the law is that it leads to great variety and even contrariety of interpretation and of practice. In their dealing with this law the judges may be divided into two classes—those who adhere to the literal text of the law, and those whom I may term latitudinarian judges, who read into the law meanings into which it does not seem capable of being interpreted by the lay mind. As a specimen and type of the judges who adhere to the text of the law in its most literal sense, there is no better instance than Lord Field, whose rulings in the *Hitchens* case have already been referred to by Dr. Weatherly. Such judges will admit no evidence of the sanity or insanity of the prisoner, even at the time of the trial. "The question," said Mr. Justice Field, "is one of fact, whether, at the time of the murder, when this witness was not present, the prisoner was responsible for his actions. That must be answered by the jury on evidence of what occurred at the time or before." Counsel for the defence suggested that the opinion of a medical man regarding the state of the prisoner's mind now might assist the jury in concluding as to his state of mind at the time the act was committed. To this the judge said, "I shall rule clearly not." On the other hand, Mr. Justice Day, in the case of *Gouldstone*, allowed the fellow-workmen of the prisoner to state their belief in his insanity; allowed evidence of the insanity not only of the prisoner himself, but of his mother and sister, of his aunt, and of a second cousin once removed. Mr. Justice Field would allow no opinion as to the sanity or insanity of the prisoner to be given. "I am determined," he said, "not to allow any medical gentleman, however eminent, to be substituted for the jury. When trial by medical men comes into vogue, well and good; but so long as trial by jury is the law of the land, I will not allow a medical man to be substituted for the jury. The medical men are not to give their opinions; they are to state to the jury the facts upon which their opinions as to the state of the prisoner's mind are founded, and on those facts the jury are just as competent to come to a conclusion as the expert witnesses." The judge proceeded to question the witness minutely as to what passed between him and the prisoner, and required the exact conversation as far as possible to be repeated. On the other hand, at the trial of *Maclean*, before the late Lord Chief Justice Coleridge and Baron Huddleston, the Attorney-General put these questions to a witness who had not seen the prisoner until after the crime: "What do you say as to his knowledge of an act he is committing? Would he be aware of what he is doing? What do you think as to his competency to know whether he is doing right or wrong?" "It is difficult," said the witness, "to enter into the mind of another person." "But what is your own opinion?" "My opinion is that he would be competent to distinguish between right and wrong. Decidedly he would know at the time he fired the pistol that he was doing a wrong act." Here the Lord Chief Justice interposed: "That is not quite what the Attorney-General asked. He asked whether he was aware of the act

he was committing, and then he asked whether he was aware that the act he was committing was wrong."

The Attorney-General: "Did he know whether it was a right act or a wrong act to commit?"

It is important to observe that this evidence of opinion was asked for not by the counsel for the defence but by the counsel for the prosecution, who in this case was the Attorney-General, and that his demand for an opinion was endorsed, corroborated, and insisted upon by the judge; and that this opinion demanded was not a mere general opinion as to the sanity or insanity of the prisoner, but was on the very point—the knowledge of right and wrong—which was to be specifically left to the jury. In another part of the same case the ruling of the judge was contrary to that of Mr. Justice Field. So far from requiring the witness to state what passed between him and the prisoner, the Lord Chief Justice, addressing a witness, said: "What I want to hear from you is not, strictly speaking, what passed between you and him. You are to tell us, as a man of great science and experience, what is your scientific conclusion."

The ruling of Mr. Justice Cave in the case of Brocklehurst was even more emphatically contradictory of the literal interpretations of other judges. When counsel for the prosecution was about to address the jury on the subject of the prisoner's insanity the judge interposed with the remark that the doctor had said distinctly that the prisoner was of unsound mind. Counsel suggested that the question for the jury was whether the prisoner was capable of appreciating the difference between right and wrong. The judge said "No; the question is whether he was insane at the time—(laughter)—and if a man is suffering from the delirium that his wife tries to poison him and is unfaithful to him, and attacks her in consequence, it is as clear as anything can be that the man is mad." Turning to the jury, he said, "Do you feel any difficulty about it, gentlemen?" "Not the slightest," said the foreman. (Loud laughter.)

The third objection to the present state of the law is that *it leads to the stultification of judicial trials by the subsequent certification of the convict.* The whole of the formalities of arraignment and trial, the addresses of counsel, the examination and cross-examination of witnesses, the summing up of the judge, the verdict, and the dreadful sentence of death, are all parts of a solemn but undignified farce. The whole procedure is nullified by the subsequent reports of two medical men. The judges say that they will not allow trial by jury to be superseded by trial by medical men; but the system that they uphold leads directly to, and involves, an appeal from trial by jury to trial by medical men; and on appeal the case is tried in private, is tried by an unsworn jury of two, without a judge, without counsel, without witnesses. By this private and irresponsible, this amateur court, the verdict and judgment of the court of assize is set aside and superseded.

The last objection to the present interpretation of the law is that *it sets up a test of insanity which is inherently incapable of being satisfied.* The question of the life or death of an individual is determined by guessing at what he knew and what he thought at the time the crime was committed. It is manifestly impossible for one person to get inside the mind of another person and to witness the operations that are passing therein. What a person knows and what he thinks are known to him alone, and by other people can only be guessed at more or less approximately.

It does not fall within the terms of the resolution to propose a substitute for the existing law, but such a substitute would not be hard to find, and may be based upon a statute passed a few years ago. By this statute the verdict of the jury in cases of lunatic criminals is not "Guilty, but he did not know right from wrong." It is not "Guilty, but he did not know the nature and quality of his act." It is not "Guilty, but he did not know that he was committing a crime." It is "Guilty, but insane."

Why should not, then, the questions be left to the jury: Did the prisoner commit the crime with which he is charged? Was he insane at the time? They would not then have to find whether the man was capable of forming this or that particular judgment, a finding that can never be more than a guess, for which safe guidance can rarely be obtained, the facts bearing on it being necessarily few and equivocal; a

finding which, when found, is not a trustworthy criterion of his sanity. They would have to conclude, not merely from the opinion of experts, but from the whole mass of evidence before them, whether the man was sane or insane. Should it be said that such a finding would relax too much the rigour of the law, and that all insane people are not irresponsible on all points, it would be easy to add a limitation. Let it be left to the jury to say whether the man's mind was so disordered that the crime with which he is charged can fairly be considered the result of his insanity. Such an issue would surely satisfy the requirement of the law that no guilty person shall escape conviction; and, on the other hand, it would to a large extent provide against the occurrence, which is a reproach to our legal system, of a conviction followed by the admission that the prisoner was insane when tried. A minor advantage would be that it would relieve expert witnesses from the heavy responsibility of saying that a prisoner can in all probability distinguish right from wrong, and in so saying being understood to make the admission that he is sane, when their opinion may be most positive that he is mad.

III.—SIR FREDERIC BATEMAN, M.D., LL.D.,
Senior Physician to the Norfolk and Norwich Hospital.

CRIMINAL ANTHROPOLOGY.

SIR FREDERIC BATEMAN said in reference to a statement that had been made that the legal profession was opposed to any alteration of the law, he would call attention to the fact that quite recently the subject had engaged the attention of the New York Medico-Legal Society, in consequence of a paper read before the Society by Mr. Clark Bell. It was as well to bear in mind that the New York Medico-Legal Society was not a purely medical society, but comprised American judges and medico-legists. It was impossible to disconnect this question from the subject of criminal anthropology, which was just now engaging the attention of Continental observers, especially in Italy, where there was a school of scientists who maintained that murderers and other hardened criminals were not responsible in consequence of some structural change in the brain. It had been stated that in malefactors there had been observed an unfolding or reduplication of the second frontal convolution, thus increasing the number of the frontal convolutions from three to four, as occurred in the carnivorous animals. Sir Frederic Bateman said that he had investigated this matter, and his essay upon this subject had been discussed at the Medico-Legal Society of New York. He had arrived at the conclusion that science did not support this dangerous doctrine. He pointed out that this was a most opportune time for discussing this matter, as it was attempted to be proved that Vaillant and other French Anarchists were not responsible beings. In reference to certain remarks that had been made as to the fate of an accused person depending upon the caprice of a particular judge, he mentioned a case which occurred a few years ago in Norwich, where an insane murderer was condemned to death, and would undoubtedly have been hanged, but some days after the trial the medical superintendent of the County Asylum, feeling very strongly that justice was not being done to the man, intervened in the matter, with the result that his life was saved. Sir Frederic Bateman maintained that the evidence which saved this man from the gallows should have been given to the jury, and not after the sentence was passed.

IV.—ERNEST HART, D.C.L.

MR. ERNEST HART said that he had been asked to attend the discussion as Chairman of the Parliamentary Bills Committee of the Association, to whom he understood that it would be proposed to refer any resolutions which might be arrived at requesting them to take action in the matter. He should be obliged to leave in the course of a few moments, and would ask leave now only to say that he did not anticipate much good result, and certainly no very early result, either from the appointment of a select committee of the House of Commons, which would be a very slow affair, or from the drafting of a parliamentary bill which would lead to much contentious discussion, and of which both the tenour and the conclusion might be unsatisfactory, and would certainly be

long deferred. He would venture to suggest that the House of Lords should be moved with the assent of the Lord Chancellor once more to put to the judges a series of questions such as those which were put in the MacNaughten case. To such questions as had been suggested they might now return replies which, consonant with the advance of knowledge and the long experience attained, might considerably improve the present practice and lead to the abolition of many of the existing anomalies. He would like to ask Mr. Pitt Lewis, whose knowledge of this matter was very considerable, whether he would favour such a course.

V.—MR. W. C. H. CROSS.

THE WILD BEAST THEORY.

THE rule in MacNaughten's case cannot be treated as expressing the whole law of the land. Mr. Justice Stephen treated the fact that the crime was the result of uncontrollable impulse as a sufficient defence. It is not very likely that a case will arise in which there is a conviction when there is a man who is insane—if it does arise the Court for Crown Cases Reserved will almost certainly lay down the law in the more liberal spirit of Sir James Stephen. If it does not arise, I think we may be sure that there will not be among the rising race of judges adherence to the view taken by Mr. Justice Field in the Hitchens case, but rather to that stated by Sir James Stephen. The rule in MacNaughten's case will go the way of the "wild beast theory," and of the theory that the test of insanity is the capacity to distinguish right from wrong generally. On proof of insanity the burden of proving that the crime was not the effect of the insanity ought to lie on the prosecution.

VI.—G. H. SAVAGE, M.D., F.R.C.P.,

Late Physician and Superintendent, Royal Bethlem Hospital.

THE QUESTION RIPE FOR ACTION.

I CAME rather to hear legal opinion than to express a medical one. The time for change is approaching, and I believe we can help this change forward. Experts are, in my experience, treated very differently by various judges. I have been at one time encouraged to give my opinion, and this has been accepted in its entirety; in another case nothing but facts observed have been admitted. We must consider whether all insanity, partial or complete, is enough to bar a crime. Some lawyers say "No." Yet we have to recognise that a man may have perfect sensory impressions and perfect recognition and memory, and yet may have an insane method of thought. In some cases, as in that of a parricide, I think Mr. Justice Denman ruled that a man may have perfect recognition of his act, and yet be irresponsible because his acts followed on insane delusion. The whole question is ripe for action, and I trust this meeting will help it forward.

VII.—MR. GOODWIN NORRIS.

INSANITY TO BE TREATED MEDICALLY.

So far as the law attaches no responsibility to those who are incapable of judging right from wrong, it is right and just, and should be upheld until one can be found that will give a better and a wider justice. All insane persons are held equally irresponsible; should they not then be held equally free from blame? The medical treatment will necessarily differ, but to classify them is unjust. How can one who is mentally incapable of judging right from wrong be guilty, seeing that the true and ordinary acceptation of the term is to commit a crime wittingly? There can be no middle line between guilt and innocence. One who is insane is innocent of all crime; then should he not, with the necessary precautions being taken, be treated as such?

VIII.—R. H. NOOTT, M.D.

VARIATIONS IN JUDICIAL INTERPRETATION.

THE chief point in connection with the law in relation to criminal responsibility is this, that the present law is interpreted in so many different ways by different judges. The late Sir James Stephen interpreted the law in a very free sense, but unfortunately the majority of the judges on the

bench at the present time interpret it in a very literal sense. Dr. Noott went on to review shortly Sir James Stephen's opinion on the subject as found in his book on *The History of the Criminal Law of England*.

IX.—J. BATTY TUKE, M.D.,

Morrisonian Lecturer on Insanity, Royal College of Physicians, Edinburgh.

SCOTTISH PRACTICE.

DR. BATTY TUKE said the practice in Scotland was for judges to direct the jury to consider whether *libertas arbitrii* existed in the prisoner's mind at the moment of the act.

RESOLUTIONS.

The following resolution, proposed by Dr. WEATHERLY, and seconded by Dr. MERCIER, was passed unanimously:

That in the opinion of this meeting the present law relating to the defence of insanity in criminal cases, as laid down by the judges in 1843, is not in accord with modern mental science, and should be reconsidered.

Subsequently the following resolution, moved by Dr. MERCIER, and seconded by Dr. WEATHERLY, was passed unanimously, after some observations from Mr. PITT LEWIS, Q.C., and Dr. BATTY TUKE:

That a committee be nominated to confer with the Parliamentary Bills Committee of this Association, and with the Committee appointed by the Medico-Psychological Association, to consider the best method of obtaining the earliest possible action of the House of Lords, or any other means, as they may deem advisable.

Whereupon the following resolution, proposed by Dr. MERCIER, and seconded by Dr. DOUGLAS, was adopted unanimously:

That the following be appointed a subcommittee, in accordance with the foregoing resolution: Dr. Orange, C.B.; Dr. Nicolson, Dr. Conolly Norman, Dr. G. F. Blandford, Dr. G. H. Savage, Mr. Ernest Hart, Dr. L. A. Weatherly, Dr. C. A. Mercier.

PUBLIC MEDICINE.

Professor W. H. CORFIELD, M.D., President, in the Chair.

THURSDAY, AUGUST 2ND.

THE FILTRATION OF POTABLE WATER.

BRIGADE-SURGEON-LIEUTENANT-COLONEL LANE-NOTTER said that the filtration of potable water was a subject much discussed, and one which had assumed a position of importance owing to the evidence of waterborne disease having grown stronger each year, and from the fact that the necessity of providing a pure water supply was now absolutely recognised. He had made a series of investigations with regard to the chemical constituents of water passed through filters. These results showed clearly that filters were limited both as to their power of filtration in regard to the time occupied, and the quantity of water passed through them. They showed clearly also that when they were dealing with a subject like filtration through animal charcoal they were dealing with a substance that was always open to suspicion. Animal charcoal added both to the nitrogen and to the phosphates of water. He need not say these alone formed nutrient media for the growth of lower organisms. Much better, perhaps, than this sort of filter was polarite or manganous carbon, both of which came out well in these experiments. Later he had examined water bacteriologically. He had on the table two filters—the Chamberland-Pasteur filter and the Berkefeld filter. The Berkefeld filter followed the Chamberland in principle and method. They were not intended to produce any chemical action on the water, but to sterilise the water by filtering out all the germs which existed in it. The Chamberland-Pasteur filter was made of fine china-clay. It was hard, and could be readily cleansed. The Berkefeld, on the contrary, was made of infusorial earth. It was soft, more friable, and perhaps there was some greater difficulty in cleansing. With regard to the Chamberland-Pasteur filter, he made a great number of experiments. He might remark upon the introduction of this filter into the French military service. It was